



FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION-2019
FOR RECRUITMENT TO POSTS IN BS-17
UNDER THE FEDERAL GOVERNMENT

Roll Number

LAW

TIME ALLOWED: THREE HOURS	PART-I (MCQS)	MAXIMUM MARKS = 20
PART-I(MCQS): MAXIMUM 30 MINUTES	PART-II	MAXIMUM MARKS = 80
NOTE: (i) Part-II is to be attempted on the separate Answer Book. (ii) Attempt ONLY FOUR questions from PART-II. ALL questions carry EQUAL marks. (iii) All the parts (if any) of each Question must be attempted at one place instead of at different places. (iv) Write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper. (v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed. (vi) Extra attempt of any question or any part of the question will not be considered.		

PART – II

- Q. No. 2.** If a suit, between the same parties, on the same cause of action is pending in a Competent Court of Jurisdiction. Can a second suit be filed in another Court of Competent Jurisdiction in Pakistan? Argue the statement in the light of relevant provisions of Code of Civil Procedure (CPC) 1908. (20)
- Q. No. 3.** (a) Discuss the scope and nature of international Commercial Arbitration (ICA) in a globalized economy. Highlight the reasons for the growth and development of “ICA”. Enumerate the international legal framework regarding the “ICA” and what are legislative and Administrative measures which have initiated in Pakistan? Comment. (10)
- (b) Enumerate the legal and factual grounds against the recognition and enforcement of Foreign Arbitral Awards in Pakistan. (10) (20)
- Q. No. 4.** What is an Appeal? Explain the grounds upon which an appeal may be instituted and discuss the distinction between the first and second appeal against the decrees and law relating to appeal against orders. (20)
- Q. No. 5.** How a witness may refresh his memory. What are the rights of the opposite party when witness is allowed to refresh his memory? (20)
- Q. No. 6.** Approver is a person who is granted pardon in certain circumstances. Discuss the provisions of Code of Criminal Procedure (Cr.PC) 1898 relating to tender of pardon to accomplice. (20)
- Q. No. 7.** What are the supplement proceedings, which a Court is empowered to take to secure the ends of justice? (20)
- Q. No. 8.** (a) Can the pleadings be amended at any stage of proceeding? Describe the grounds upon which the amendment is allowed under the law. (10)
- (b) Distinguish between the situations where the court has to return or reject the plaint. (10) (20)
